

26STCV15458 26STCV15458

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Case Number: 26STCV15458 Hearing Date: July 6, 2026 Dept: 32

SOHRAB ALIASHRAFLO,

Plaintiff,

v.

GUILLERMO LANDEROS, et

al.,

Defendants.

Case No.: 26STCV15458

Hearing Date: July 6, 2026

[TENTATIVE]

order RE:

plaintiff's motion to remove mechanics

lien

BACKGROUND

On May 14, 2026, Plaintiff Sohrab

Aliashraflo filed this action against Defendants Guillermo Landeros (Landeros);

Manos Services, LLC (Manos); and Philadelphia Indemnity Insurance Company

(PIIC). The complaint stems from the following allegations.

Plaintiff hired Norman Tejeda

(Tejeda) as the general contractor to perform construction services at his property. Tejeda hired Landeros as a subcontractor solely to perform bookkeeping and billing services. Subsequently, Landeros misrepresented to Plaintiff that his company, Manos, was a licensed contractor. As a result, Plaintiff entered into two construction contracts with Manos. Landeros and Manos failed to perform under the contracts despite receiving payment from Plaintiff. PIIC is Landeros' insurer.

On June 3, 2026, Plaintiff filed an ex parte application to remove a mechanics lien placed on the property by Landeros, which the Court is treating as a motion. Defendants have not filed an opposition.

LEGAL STANDARD

"A motion to remove a mechanic's lien is recognized as a device that allows the property owner to obtain speedy relief from an unjustified lien or a lien of an unjustified amount without waiting for trial on the action to foreclose the lien." (Howard S. Wright Construction Co. v. Superior Court (2003) 106 Cal.App.4th 314, 318.) "The inquiry upon such motion is . . . limited to the 'probable validity' of the lien." (Ibid.)

"[T]he grant of a motion to remove a mechanic's lien is essentially a judgment on the underlying foreclosure action that no lien exists--a judgment that, upon recordation, removes the lien from the public records." (Ibid.)

DISCUSSION

I.

Timeliness

"A preliminary notice shall be given not later than 20 days after the claimant has first furnished work on the work of improvement. If work has been provided by a claimant who did not give a preliminary notice, that claimant shall not be precluded from giving a preliminary notice at any time thereafter. The claimant shall, however, be entitled to record a lien, give a stop payment notice, and assert a claim against a payment bond only for work performed within 20 days prior to the service of the preliminary notice, and at any time thereafter." (Civ. Code, § 8204(a).)

Here, Landeros executed a preliminary notice dated March 10, 2026. (Aliashraflo Decl. ¶ 8, Ex. A.) However, the envelope in which the notice arrived was postmarked March 20, 2026. (Id., ¶ 9, Ex. B.) There is no indication that Landeros or Manos performed any work in the 20 days prior to either date, or at any time after those dates. Landeros did not otherwise issue the preliminary notice within 20 days after he first furnished work. In fact, Tejada avers that Landeros performed no construction work at all and was hired “solely to perform bookkeeping and billing services.” (Tejada Decl. ¶ 3.)

Therefore, the mechanics lien is unsupported by a timely preliminary notice. Because Defendants have failed to demonstrate the probable validity of the lien, removal is warranted. (See Howard S. Wright Construction Co., *supra*, 106 Cal.App.4th at p. 318.)

II.

Claimant

The mechanics lien lists Guillermo Landeros as the claimant. (Aliashraflo Decl., Ex. D.) However, Landeros is not a valid claimant, because he performed no construction services in relation to the subject property. Tejada hired Landeros “solely to perform bookkeeping and billing services.” (Tejada Decl. ¶ 3.) “Landeros never provided any construction related services at the PROPERTY, nor was he ever authorized to do so.” (Id., ¶ 6.) Landeros cannot enforce a lien for services not performed.

Although only Landeros is listed as the claimant on the mechanics lien, the preliminary notice listed the claimant as “Guillermo Landeros DBA Manos Service LLC.” (Aliashraflo Decl., Ex. A.) However, Manos would not be a valid claimant either. “A security interest taken to secure any payment for the performance of any act or contract for which a license is required by this chapter is unenforceable if the person performing the act or contract was not a duly licensed contractor at all times during the performance of the act or contract.” (Bus. & Prof. Code, § 7031(c).) Manos is not licensed by the Contractors State License Board. (Omrani Decl. ¶ 2, Ex. C.) Thus, any lien asserted by Manos would be unenforceable.

Defendants present no evidence to rebut

Plaintiff's showing. Thus, Defendants have failed to demonstrate the probable validity of the lien. Accordingly, removal of the lien is warranted. (See Howard S. Wright Construction Co., *supra*, 106 Cal.App.4th at p. 318.)

CONCLUSION

Plaintiff's motion to remove
mechanics lien is GRANTED.